



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35499518

Date: JAN. 15, 2025

Appeal of Nebraska Service Center Decision

Form N-565, Application for Replacement Naturalization/Citizenship Document

The Applicant is a naturalized citizen of the United States who seeks to have his Certificate of Naturalization corrected under Title 8, Code of Federal Regulations, section 338.5 (8 C.F.R. § 338.5), to reflect a change in his date of birth from [REDACTED], 1964, to [REDACTED] 1960. The Director of the Nebraska Service Center denied the application, concluding that the Applicant's [REDACTED] 1964, date of birth listed on his Form N-400, Application for Naturalization, and other documents in the record, were consistent with the date of birth on his naturalization certificate, and that he therefore did not establish that the birth date on the certificate did not conform to the information provided in his Form N-400 or that clerical error was made in preparing the certificate. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Applicant bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

On appeal, the Applicant presents a personal statement wherein he claims he was born the same year that Somalia gained its independence, namely 1960, not 1964 as he previously indicated, and that it is medically necessary to correct his year of birth. We also acknowledge the Applicant's supporting evidence, including three statements submitted on appeal from extended family members attesting to the claimed 1960 year of his birth.¹

We adopt and affirm the Director's decision. *See Matter of Burbano*, 20 I&N Dec. 872, 874 (BIA 1994); *see also Giday v. INS*, 113 F.3d 230, 234 (D.C. Cir. 1997) (noting that the practice of adopting and affirming the decision below "is not only common practice, but universally accepted"). In adjudicating a request for a replacement Certificate of Naturalization, we may correct a date of birth

¹ The Applicant also submitted an untranslated biographic document that appears to be written in Somali and the Ethiopian script. We are unable to consider the untranslated document, however, without a conforming English translation. *See* 8 C.F.R. § 103.2(b)(3) ("[a]ny document containing foreign language submitted to [U.S. Citizenship and Immigration Services] shall be accompanied by a full English language translation which the translator has certified as complete and accurate, and by the translator's certification that he or she is competent to translate from the foreign language into English.").

when: (1) the date of birth printed on the original certificate does not conform to the information on the naturalization application, or (2) U.S. Citizenship and Immigration Services (USCIS) made a clerical error in preparing the certificate. *See* 8 C.F.R. § 338.5(a). Additionally, a correction to a naturalization certificate will not be deemed justified where the naturalized person alleges that the date of birth which they stated to be their correct date of birth at the time of naturalization was not in fact their true date of birth. 8 C.F.R. § 338.5(e). Here, the Director reviewed the Applicant's record and correctly determined that [REDACTED] 1964, as listed on his naturalization certificate is the date of birth that was sworn and attested to, under oath, by the Applicant at the time of his naturalization. The Applicant does not claim, nor does the record demonstrate, that the date of birth on his certificate is different from the information on his naturalization application, or that USCIS made a clerical error in preparing his certificate. 8 C.F.R. § 338.5(a). We acknowledge the Applicant's claim that his date of birth at the time of his naturalization is not in fact his true date of birth, and his assertion that the change is necessary for medical purposes. However, this is not sufficient to demonstrate his eligibility for a new naturalization certificate with a different date of birth where he has not established that he satisfies the regulatory requirements in 8 C.F.R. § 335.5(a), (e). Accordingly, we cannot change the date of birth on his Certificate of Naturalization.

ORDER: The appeal is dismissed.